

Opinion of the Court

532 U.S. 275, 287 (2001), the Court assumed it to be a proper judicial function to “provide such remedies as are necessary to make effective” a statute’s purpose, *J. I. Case Co. v. Borak*, 377 U.S. 426, 433 (1964). Thus, as a routine matter with respect to statutes, the Court would imply causes of action not explicit in the statutory text itself. See, e.g., *id.*, at 430–432; *Allen v. State Bd. of Elections*, 393 U.S. 544, 557 (1969); *Sullivan v. Little Hunting Park, Inc.*, 396 U.S. 229, 239 (1969) (“The existence of a statutory right implies the existence of all necessary and appropriate remedies”).

These statutory decisions were in place when *Bivens* recognized an implied cause of action to remedy a constitutional violation. Against that background, the *Bivens* decision held that courts must “adjust their remedies so as to grant the necessary relief” when “federally protected rights have been invaded.” 403 U.S., at 392 (quoting *Bell*, *supra*, at 684); see also 403 U.S., at 402 (Harlan, J., concurring in judgment) (discussing cases recognizing implied causes of action under federal statutes). In light of this interpretive framework, there was a possibility that “the Court would keep expanding *Bivens* until it became the substantial equivalent of 42 U.S.C. § 1983.” Kent, *Are Damages Different?: Bivens and National Security*, 87 S. Cal. L. Rev. 1123, 1139–1140 (2014).

C

Later, the arguments for recognizing implied causes of action for damages began to lose their force. In cases decided after *Bivens*, and after the statutory implied cause-of-action cases that *Bivens* itself relied upon, the Court adopted a far more cautious course before finding implied causes of action. In two principal cases under other statutes, it declined to find an implied cause of action. See *Piper v. Chris-Craft Industries, Inc.*, 430 U.S. 1, 42, 45–46 (1977); *Cort v. Ash*, 422 U.S. 66, 68–69 (1975). Later, in *Cannon v. University of Chicago*, 441 U.S. 677 (1979), the Court did allow an implied cause of action; but it cautioned that, where Congress “intends private litigants to have a cause of action,” the “far